

Risk neutral

Fee rule	Meritorious-P shortfall	Nonliable-D burden	Liable-D excess burden	Gross outcome error	Total expenditures
American	0.362	0.178	0.004	0.259	0.415
Trial Fee-Shifting	0.359	0.175	0.005	0.259	0.407

Risk averse

Fee rule	Meritorious-P shortfall	Nonliable-D burden	Liable-D excess burden	Gross outcome error	Total expenditures
American	0.365	0.126	0.001	0.258	0.320
Trial Fee-Shifting	0.371	0.128	0.000	0.259	0.334